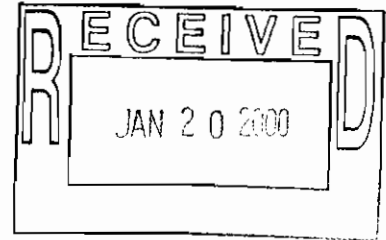


**ATTACHMENT 18 – RESPONSE LETTER FROM MODERN CONTINENTAL
COMPANY TO BECHTEL / PARSONS BRINCKERHOFF DATED
JANUARY 19, 2000
(3 pages)**

January 19, 2000

Central Artery/Tunnel Project
Bechtel/Parsons Brinkerhoff
185 Kneeland Street
Boston, MA 02111



Attention: Mr. R. E. Steffy
Authorized Representative

Subject: Central Artery (I-93) / Tunnel (I-90) Project
Contract No. 99119-C09B2
I-90 Seaport Access Tunnel Finishes
CP # 22 – Adhesive Anchor Testing Procedure

Reference: B/PB Letter No. 0498, dated 1/7/00
MCC Letter No. 0165, dated 12/29/99
B/PB Letter No. 0436, dated 12/02/99
MCC Letter No. 0139, dated 11/08/99
B/PB Letter No. 0350, dated 10/12/99

Dear Mr. Steffy:

In response B/PB Letter No. 0498 regarding a denial of CP # 22, MCC does not agree with B/PB's position in regards to the determination of responsibility for re-testing previously tested and approved adhesive anchors.

B/PB quotes Division I of the contract stating that an approved submittal including manufacturer's data denoting an allowable adhesive bond strength of 6350 lbs now becomes a contract "requirement", taking precedence over the original contract specification value of 3250 lbs. MCC asserts that the manufacturer's data represents merely information regarding the historic testing of the anchor and does not have any reference to a "requirement". The bid upon requirement of this issue remains consistent with the contract specifications. B/PB's position would ultimately compel a contractor into submitting a lesser quality product, as no safety factor is allowed for the benefit of the contractor in providing a superior product.

Further, MCC's response to DR – 001 includes the manufacturer's requirements for remediating the pull out issues encountered on this project. An exercise which was directed by B/PB as part of the DR resolution. Re-testing of properly torqued anchors or anchors to a higher strength criteria was not part of the manufacturers requirements or any requirement of the contract documents.

MCC respectfully requests an FCN and associated Issue Number be provided in regard to this matter. If B/PB continues to maintain its original position requiring testing to 6350 lbs or re-testing previously tested, properly torqued anchors at the expense of MCC, MCC must request that this issue be immediately raised in accordance with the issue resolution model.

Modern Continental Construction Company Inc.

cc: M. Charney, B/PB
C. Madden
J. Pastore

CN-9.0982.19.723.480-016-B